

NON-DISCLOSURE AGREEMENT (UNILATERAL)

This Non-Disclosure Agreement (this "Agreement") is entered into as of the Effective Date by and between the Disclosing Party and the Receiving Party identified on the signature page hereto. The Disclosing Party may disclose Confidential Information to the Receiving Party in connection with the purpose described herein.

1. Confidential Information. "Confidential Information" means any non-public information disclosed by the Disclosing Party to the Receiving Party, whether orally, in writing, or in any other form, that is designated as confidential at the time of disclosure. Confidential Information includes, without limitation, technical information, business plans, customer lists, financial data, and product roadmaps.

1.1 Exclusions. Confidential Information does not include information that (a) is or becomes generally available to the public other than as a result of disclosure by the Receiving Party, (b) was known to the Receiving Party on a non-confidential basis prior to disclosure, or (c) becomes available to the Receiving Party on a non-confidential basis from a source other than the Disclosing Party.

2. Obligations of the Receiving Party. The Receiving Party shall (a) hold the Confidential Information in strict confidence, (b) use the Confidential Information solely for the purpose described in this Agreement, and (c) take all reasonable precautions to prevent unauthorized disclosure.

2.1 Standard of Care. The Receiving Party shall protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar importance, but in no event less than reasonable care.

2.2 Permitted Disclosures. The Receiving Party may disclose Confidential Information only to its employees and representatives who (a) have a need to know such information for the purpose described in this Agreement and (b) are bound by confidentiality obligations at least as restrictive as those set forth in this Agreement.

3. Term. This Agreement shall remain in effect for a period of three (3) years from the Effective Date. The Receiving Party's obligations of confidentiality shall survive termination for an additional two (2) years.

4. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession and certify such return or destruction in writing.

5. Governing Law. This Agreement shall be governed by the laws of the State of California, without regard to its conflict of laws principles.

6. Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous communications and agreements, whether oral or written.

7. Injunctive Relief. The Parties acknowledge that monetary damages may be inadequate to remedy a breach and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

DISCLOSING PARTY SIGNATURE: _____

RECEIVING PARTY SIGNATURE: _____

